

25STCV35056 25STCV35056

County: los-angeles

Division: Civil Law and Motion

Department: 836

Hearing date: 2026-08-11

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Case Number: 25STCV35056 Hearing Date: August 11, 2026 Dept: 836

APPLICATION FOR RIGHT TO ATTACH ORDER

Date: 8/11/26

(1:30 PM)

Case: Shahram Pascal

Abrar v. Tayfun Paul Kadioglu., et al.

(25STCV35056)

TENTATIVE

RULING:

Plaintiff Shahram Pascal Abrar's UNOPPOSED application for right to attach order as to defendant Paloma Palm Springs LLC is DENIED.

Although he contends otherwise, plaintiff Shahram Pascal Abrar filed only one notice of application and one application for writ of attachment on May 6, 2026, even though his memorandum of points and authority claims to seek writ of attachment against defendants (1) Tayfun Paul Kadioglu, (2) Paloma Palm Springs LLC, and (3) Bellevue Oasis LLC (see Notice of Mtn. 1) and his Reply Brief claims he filed “two separate 186-page Applications for Right to Attach Order—one directed to BELLEVUE OASIS LLC and one directed to PALOMA PALM SPRINGS” (Reply at 3-4).

As required by CCP § 484.050, a notice of application for writ of attachment “shall inform” a defendant against whom attachment is sought various required information. Here, the

single notice of application is directed only to defendant Paloma Palm Springs LLC. Defendants Kadioglu and Bellevue

Oasis LLC have thus not received proper notice as required by CCP § 484.050. Because a writ of attachment is a special statutory remedy, courts have found that the statutory requirements must be strictly followed. (Gow v. Marshall (1891) 90 Cal. 565, 567; Yosemite Growers Co-op Ass'n v. Case-Swayne Co. (1946) 73 Cal.App.2d 806, 811.) Plaintiff did not comply with the statutory requirements, and the Court accordingly considers only plaintiff's request for attachment against defendant Paloma Palm Springs LLC.

With respect to Paloma Palm Springs LLC, plaintiff moves for a right to attach order in the amount of \$694,751.00 based on theory that it is an alter ego of defendant Kadioglu. By way of background, plaintiff and Kadioglu entered into a residential lease agreement on May 23, 2024 in connection with property located at 5227 Los Hermosos Way, Los Angeles, California 90027, wherein Kadioglu agreed to pay plaintiff monthly rent of \$18,500. (Abrar Decl. ¶¶ 2-3 & Ex. A.) Per an addendum to the lease agreement, plaintiff permitted Kadioglu to use the subject property for short-term rentals, and, in exchange, plaintiff would be entitled to collect the income derived from these rentals and retain a management fee of 30%. (Abrar Decl. ¶ & Ex. A [Addendum No. 2].)

Plaintiff claims that he has been damaged by Kadioglu's failure to repay outstanding rent and to honor the lease addendum, as well as by causing plaintiff to incur regulatory fines and HOA penalties. (Abrar Decl. ¶¶ 4, 7, 13 & Exs. B, G.) Plaintiff claims that Kadioglu used defendant Paloma Palm Springs LLC as a "conduit[] or repositor[y] for short-term-rental revenues connected to the [subject property]." (Mtn. at 3:24-26, 4:9-13; Abrar Decl. & Ex. C [Verified Compl].)

Pursuant to CCP § 484.090, in order to issue a writ of attachment, the Court must find, among other things that plaintiff has established the probable validity of its claim against the defendant. A claim has "probable validity" if it is shown to be more likely than not that the plaintiff will obtain a judgment against the defendant on that claim. (CCP § 481.190.) Here, while attachment may be had upon a valid showing that the alter ego theory should apply (Meizlish v. San Francisco Wool Sorting & Scouring Co. (1931) 213 Cal. 668, 670 [finding sufficient evidence to warrant attachment as alter ego]), the Court does not find on this record that plaintiff is likely to establish its claim of alter ego against defendant Paloma Palm Springs LLC.

"In California, two

conditions must be met before the alter ego doctrine will be invoked. First, there must be such a unity of interest and ownership between the corporation and its equitable owner that the separate personalities of the corporation and the shareholder do not in reality exist. Second, there must be an inequitable result if the acts in question are treated as those of the corporation alone." (Sonora Diamond Corp. v. Superior Court (2000) 83 Cal.App.4th 523, 538-539.) "Among the factors to be considered in applying the doctrine are commingling of funds and other assets of the two entities, the holding out by one entity that it is liable for the debts of the other, identical equitable ownership in the two entities, use of the same offices and employees, and use of one as a mere shell or conduit for the affairs of the other." (Ibid., internal citations omitted.) "Other factors which have been described in the case law include inadequate capitalization, disregard of corporate formalities, lack of segregation of corporate records, and identical directors and officers." (Ibid.; see also Zoran Corp. v. Chen (2010) 185 Cal.App.4th 799, 811-12 [enumerating the various factors])

Even if attachment were appropriate against Kadioglu, the Court finds the evidence before it insufficient to support plaintiff's alter ego theory of liability against defendant Paloma Palm Springs LLC. Plaintiff's allegations that Paloma Palm Springs LLC was used in connection with the short-term rental scheme is based purely on information and belief. (See Abrar Decl. Ex. C [Verified Compl. ¶¶ 42-43].) The same is true for the allegations regarding plaintiff's alter ego theory. (See Abrar Decl. Ex. C [Verified Compl. ¶¶ 49-50].) Thus, such allegations are insufficient to support attachment against Paloma Palm Springs.

Moreover, plaintiff submits evidence that merely shows that Kadioglu solely owns and controls the entity defendant, uses the same management property company for different hospitality businesses, and uses the same registered address for his entities. (Mtn. at 7:17-26, 8:4-15, 9:8-15; Abrar Decl. ¶¶ 9-10, 17 & Exs. D-E, I.) There is no evidence that the defendants are commingling funds or that Paloma Palm Springs is undercapitalized or holding itself out for the debts of Kadioglu. Plaintiff's reliance on Kadioglu's use of the same management company for the subject property as he does for his other hospitality businesses does not demonstrate that there is no financial separation or independent accounting as between the entities owned by Kadiglu. (Mtn. at 8:4-15, 8:18-9:6.) There is also no indication that

Kadioglu has been disregarding corporate formalities by keeping hospitality management as an in-house enterprise. Furthermore, plaintiff's assertion that Kadioglu does not hold real property does not support a finding that it would be an injustice to prevent the piercing of the corporate veil. Lastly, plaintiff's reliance on the fact that a different action claimed that Bellvue Oasis is a dba for Paloma Palm Springs LLC is irrelevant because that complaint is not verified and no other evidence has been submitted to corroborate this assertion. (Mtn. at 10:20-25; Abrar Decl. Ex. H.)

Accordingly, because sufficient evidence has not been submitted to establish plaintiff's alter ego theory of liability against defendant Paloma Palm Springs LLC, the Court DENIES plaintiff's request for an order of attachment.